Whistleblowing policy

What is its purpose?

The Public Interest Disclosure Act gives legal protection to workers against being dismissed or penalised by their employers as a result of making protected disclosures about certain serious concerns. Where an individual discovers information which they believe shows serious malpractice or wrongdoing within the organisation then this information should be disclosed internally without fear of reprisal, and this policy enables this to be done independently of line management. This policy provides a mechanism to enable workers and, where appropriate, other individuals connected with Squaricle Group to raise concerns in a responsible and effective manner.

Why is it important to us?

Squaricle Group is committed to the highest standards of openness, integrity and accountability. This policy ensures that everyone has access to a safe and effective means of reporting any matters of genuine concern.

Why is it important to our clients and learners?

This policy gives assurance to our clients and learners that Squaricle Group is committed to the fair treatment of any employee who raises legitimate concerns.

Who within the organisation does it apply to?

All Squaricle Group employees, workers, contracted workers and associates, and, where relevant, former workers or ex-employees raising concerns about matters connected with their work. Where a person is not legally protected under whistleblowing legislation, Squaricle Group may still consider concerns raised under this policy, but this does not itself create statutory whistleblowing protection.

When will it be effective from?

January 2020

What are our responsibilities and accountabilities?

This policy is intended to assist individuals who believe they have discovered malpractice or impropriety. It is not designed to question financial or business decisions taken by Squaricle Group nor should it be used to reconsider any matters which have already been addressed under harassment, complaint, disciplinary or other procedures. However, a concern may still be considered under this policy where it may amount to a protected disclosure, even if related issues have also been raised under another procedure.

This policy is intended to cover concerns which are in the public interest and may at least initially be investigated separately but might then lead to the invocation of other procedures e.g. disciplinary.

These concerns may include, where the worker reasonably believes the disclosure is in the public interest:

- A criminal offence
- Financial malpractice, or bribery, or impropriety, or fraud
- Failure to comply with a legal obligation
- A miscarriage of justice
- Dangers to health or safety of any individual
- Damage or danger to the environment
- Safeguarding issues
- Sexual harassment has occurred, is occurring or is likely to occur
- A failure, or likely failure, to take reasonable steps, or where applicable all reasonable steps, to prevent sexual harassment or relevant third-party harassment
- Improper conduct or unethical behaviour
- The deliberate concealment of information relating to any of the above

Safeguards

i. Protection

This policy is designed to protect workers who raise concerns in accordance with whistleblowing law. A worker may qualify for legal protection where they reasonably believe that the information disclosed tends to show one or more qualifying failures and that the disclosure is made in the public interest.

Squaricle Group encourages concerns to be raised internally wherever appropriate so they can be addressed promptly. However, nothing in this policy prevents a worker from making a protected disclosure to an appropriate external recipient in accordance with the Employment Rights Act 1996.

From 6 April 2026, disclosures about sexual harassment may qualify for whistleblowing protection where the worker reasonably believes the disclosure is in the public interest and the statutory conditions are met. This may include disclosures about sexual harassment itself, systemic issues, organisational culture, or failures to take reasonable steps or all reasonable steps to prevent sexual harassment. This is in addition to, and does not replace, any grievance, dignity at work, safeguarding or anti-harassment reporting routes.

No worker will be dismissed, subjected to detriment, victimised or otherwise treated less favourably because they have made, or are believed to have made, a protected disclosure.

ii. Confidentiality

Squaricle Group will treat all such disclosures in a confidential manner so far as is reasonably possible. Information will only be shared with those who need it for the purpose of assessment, investigation, safeguarding, legal compliance or remedial action. The identity of the person making the disclosure will not be revealed without their knowledge unless this

is necessary for a fair investigation, required by law, necessary for safeguarding, or required for regulatory or court proceedings.

iii. Anonymous Allegations

This policy encourages individuals to put their name to any disclosures they make. Concerns expressed anonymously are much less credible, but they may be considered at the discretion of Squaricle Group. Anonymity will not by itself be a reason to reject a concern if the issue is serious and capable of investigation.
In exercising this discretion, the factors to be taken into account will include:
• The seriousness of the issues raised
• The credibility of the concern
• The likelihood of confirming the allegation from attributable sources

iv. Untrue Allegations

No action will be taken against any person who raises a concern honestly and with a reasonable belief that it is true and in the public interest, even if the concern is not upheld. However, if it is established that a person knowingly made a false allegation or acted maliciously, Squaricle Group may take appropriate disciplinary or other action.

Procedures for Making a Disclosure

A concern may be raised with:

- the employee's manager, where appropriate;
- the relevant Head of Department;
- the Managing Director;
- the Director of Operations: Brands, People & Quality; or
- any specifically designated whistleblowing contact notified by the Group.

If the concern involves sexual harassment, safeguarding, senior leadership, or a conflict of interest, the person raising the concern may bypass line management and report directly to a designated senior contact.
Where a concern relates to harassment, bullying, victimisation or sexual harassment, the worker may also use the reporting routes in the Harassment and Bullying Policy and Sexual Harassment Prevention Policy. Squaricle Group will consider which procedure, or combination of procedures, is most appropriate.

Nothing in this policy prevents a worker from making a protected disclosure to a prescribed person, legal adviser, regulator or other appropriate external recipient in accordance with the Employment Rights Act 1996.

Where appropriate, a worker may make a protected disclosure to a prescribed person or regulator. Information about prescribed persons is available on GOV.UK. Depending on the subject matter, this may include health and safety, data protection, fraud, safeguarding, equality or other regulators.

If there is evidence of criminal activity, then the investigating officer should inform the police. Squaricle Group will ensure that any internal investigation does not hinder a formal police investigation.

The designated whistleblowing contact is the Head of Digital Learning, who can be reached at Michelle@squariclegroup.com.

Due to the varied nature of these sorts of complaints, which may involve internal investigators and / or the police, it is not possible to lay down precise timescales for such investigations. The investigating officer should ensure that the investigations are undertaken as quickly as possible without affecting the quality and depth of those investigations.
The investigating officer, should as soon as practically possible, send a written acknowledgement of the concern to the complainant and thereafter report back to them in writing the outcome of the investigation and on the action that is proposed. If the investigation is a prolonged one, the investigating officer should keep the complainant informed, in writing, as to the progress of the investigation and when it is likely to be concluded.
Responses will normally be provided in writing using the worker's agreed confidential contact method, which may include secure email, letter or another appropriate channel.

Investigating Procedure

The investigating officer should follow these steps:

- Full details and clarifications of the complaint should be obtained.
- Where the concern relates to an identifiable individual, organisation or third party, they will be informed of the concern at an appropriate stage where this is necessary and fair, unless doing so would prejudice the investigation, safeguarding, legal compliance, confidentiality or remedial action.
- The investigating officer should consider the involvement of Squaricle Group auditors and the Police at this stage and should consult with Squaricle Group Managing Director if appropriate.
- The allegations should be fully investigated by the investigating officer with the assistance where appropriate, of other individuals / bodies.
- A judgement concerning the complaint and validity of the complaint will be made by the investigating officer.
- This judgement will be detailed in a written report containing the findings of the investigations and reasons for the judgement. The report will be passed to the Squaricle Group Managing Director who will decide what action to take.
- If the complaint is shown to be justified, then they will invoke the disciplinary or other appropriate Squaricle Group procedures.
- The complainant should be kept informed of the progress of the investigations and, if appropriate, of the final outcome.
- If appropriate, a copy of the outcomes will be used to enable a review of Squaricle Group procedures.
- If the complainant is not satisfied that their concern is being properly dealt with by the investigating officer, they have the right to raise it in confidence with the Managing Director, or one of the designated persons described above.

- If the investigation finds the allegations unsubstantiated and all internal procedures have been exhausted, but the complainant is not satisfied with the outcome of the investigation, Squaricle Group recognises the lawful rights of employees and ex-employees to make disclosures to prescribed persons or body (e.g. the Health and Safety Executive). A full list of prescribed people and bodies can be found on the Government Website (www.gov.uk).
- Where a formal meeting or hearing takes place under another procedure, any right to be accompanied will be managed in accordance with that procedure and applicable statutory rights.

Squaricle Group prohibits retaliation against any person who makes, assists with, or participates in a protected disclosure or related investigation. Any retaliation, victimisation, harassment or other detriment may result in disciplinary action.

Sources of further knowledge to support understanding and personal development

Acas: Whistleblowing at work — https://www.acas.org.uk/whistleblowing-at-work

GOV.UK: prescribed persons and whistleblowing guidance — https://www.gov.uk/government/publications/whistleblowing-guidance-for-prescribed-persons

Protect: independent whistleblowing charity — https://protect-advice.org.uk/

Related documents and procedures

- Squaricle Group Harassment & Bullying Policy
- Squaricle Group Equal Opportunities Policy
- Squaricle Group Sexual Harassment Prevention Policy
- Squaricle Group Disciplinary Procedure
- Squaricle Group Grievance Procedure
- Squaricle Group Data Protection Policy

Impact and effectiveness

The Managing Director retains overall accountability for this policy. The Director of Operations: brands, people & quality will oversee receipt, triage, recording, investigation oversight, trend monitoring and annual review of whistleblowing concerns, including concerns relating to sexual harassment.